

Third-Party Logistics Services Agreement

Contract No. SL-2025-0344 | Effective Date: April 1, 2025

Vendor: SwiftLog India Pvt. Ltd., NH-48, Manesar, Haryana 122051

Client: Pinnacle Consumer Goods Ltd., 8 Connaught Place, New Delhi 110001

Contract Value: Variable — estimated INR 85,00,000 per annum based on projected volumes

Term: 18 months

1. Services

1.1 SwiftLog shall provide Pinnacle with warehousing, order fulfilment, last-mile delivery, and returns management services across 12 designated cities.

1.2 SwiftLog shall maintain a minimum inventory accuracy of 98.5% at all warehouse locations.

1.3 SwiftLog reserves the right to modify delivery routes, warehouse locations, and operational processes at its discretion, provided it notifies Pinnacle with 7 days advance notice.

Clause 1.3 — Unilateral operational change risk: vendor can change warehouse locations and routes with only 7 days notice, which may severely disrupt Pinnacle's supply chain commitments to its own customers.

2. Delivery Performance

2.1 SwiftLog targets delivery of orders within 2-3 business days for Tier 1 cities and 4-5 business days for Tier 2 cities.

2.2 Delivery timelines are indicative and not guaranteed. SwiftLog shall not be liable for delays caused by weather, traffic, civil unrest, government action, or any other factor beyond SwiftLog's direct control.

Clause 2.2 — Missing SLA risk: delivery timelines are explicitly stated as 'indicative and not guaranteed.' There is no binding service level, no penalty for delays, and an extremely broad force majeure exclusion. This provides no contractual protection for Pinnacle.

3. Pricing and Volume Commitments

3.1 Pricing is as per Schedule A attached hereto. SwiftLog may revise pricing with 30 days written notice.

3.2 Pinnacle commits to a minimum monthly shipment volume of 50,000 units. Shortfall below this minimum shall attract a deficit charge of INR 8 per unit.

3.3 Volumes above 80,000 units per month shall attract a surge pricing premium of 15% on the base rate.

Clause 3.2 + 3.3 — Volume risk: Pinnacle faces penalties if volumes fall short AND premium charges if volumes exceed projections. This creates a narrow 'safe band' with financial exposure on both sides.

4. Liability for Loss and Damage

4.1 SwiftLog shall be liable for loss or damage to goods in its custody up to a maximum of INR 500 per shipment, regardless of declared value.

4.2 Claims for loss or damage must be filed within 48 hours of delivery. Claims filed after this period shall not be entertained.

Clause 4.1 + 4.2 — Liability cap risk: INR 500 per shipment cap is grossly inadequate for high-value consumer goods. A 48-hour claims window is operationally very tight, especially for B2B deliveries where damage may not be discovered immediately.

5. Data and Reporting

5.1 SwiftLog shall provide Pinnacle with access to a real-time tracking portal and weekly performance reports.

5.2 SwiftLog retains ownership of all operational data generated during service delivery. Pinnacle's access to data is limited to the reporting dashboard and shall cease upon termination.

Clause 5.2 — Data lock-in risk: vendor retains operational data on termination. Pinnacle will lose access to historical delivery data, making vendor transition and dispute resolution very difficult.

6. Termination

6.1 Either party may terminate with 60 days written notice.

6.2 Termination by Pinnacle without cause prior to the end of the Term shall incur a penalty equal to 3 months of the estimated average monthly fees.